



2026 South Dakota Legislature

House Bill 1265**SENATE AGRICULTURE AND NATURAL RESOURCES ENGROSSED**

This bill has been extensively amended (hoghoused) and may no longer be consistent with the original intention of the sponsor.

Introduced by: **Representative Jordan**

1 **An Act to authorize the salvage of certain bird eggs.**

2 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF SOUTH DAKOTA:

3 **Section 1. That § 41-11-7 be AMENDED:**

4 **41-11-7.** Except ~~as permitted by statute, no person~~ otherwise provided in this
5 section, an individual may not take or ~~have in possession,~~ or intentionally break or destroy
6 any nest or the eggs of the kinds of birds, the taking or killing of which is at any time or
7 at all times prohibited. A violation of this section is a Class 2 misdemeanor.

8 Nothing in this section prohibits any egg salvage activity if:

9 (1) The individual holds a migratory bird special purpose salvage permit, issued by the
10 United States Fish and Wildlife Service, in accordance with 50 C.F.R § 21.95
11 (January 1, 2026); and

12 (2) The salvage activity does not involve the eggs of birds, the taking or killing of which
13 is at all times prohibited.